

PETITIONERS' BRIEF

I. STATEMENT OF JURISDICTION

The present writ petition is filed under **Article 32 of the Constitution of Indica**, as it involves the enforcement of fundamental rights guaranteed under **Articles 14, 19, 21, and 22**. The Supreme Court of Indica has exclusive jurisdiction where fundamental rights are directly infringed.

II. STATEMENT OF FACTS (Brief)

- The Parliament enacted the **Sentinel Surveillance and Predictive Policing Act, 2025 (SSPPA)**.
 - The Act authorizes mass surveillance, predictive threat scoring, preventive digital house arrest, and backdoor access to encrypted communications.
 - Ms. Paula Taylor, a foreign journalist legally residing in Indica, criticized the SSPPA.
 - She was identified by AFRS during a peaceful vigil; her PTS rose to 82.
 - She was detained for 72 hours without a warrant; devices were seized.
 - Her bank accounts and digital identity were suspended.
 - A massive data breach exposed sensitive personal data.
 - The Government denied liability.
 - Petitioners challenge the SSPPA and the violations of fundamental rights.
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III. ISSUES RAISED

1. Whether the present writ petition is maintainable?
 2. Whether the petitioner's fundamental rights have been violated?
 3. Whether Sections 5, 9, and 14 of the SSPPA are unconstitutional?
 4. Whether national security and policy matters are beyond judicial review?
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IV. SUMMARY OF ARGUMENTS

- The writ petition is maintainable due to **direct infringement of fundamental rights**.
- The impugned actions violate the **right to privacy, free speech, personal liberty, and due process**.

- Sections 5, 9, and 14 of SSPPA are **manifestly arbitrary, disproportionate, and unconstitutional**.
 - National security cannot be used as a **blanket shield** to evade judicial scrutiny.
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□ DETAILED ARGUMENTS

ISSUE 1: THE WRIT PETITION IS MAINTAINABLE

1. **Article 32 is itself a fundamental right**; exhaustion of alternative remedies is not mandatory.
2. The challenge involves **constitutional validity of legislation**, which only the Supreme Court can adjudicate conclusively.
3. The National Data Protection Board lacks jurisdiction over:
 - Preventive detention
 - Constitutional validity of statutes
4. Reliance on alternative remedies is misplaced where **grave violations of liberty and privacy** are alleged.

◆ *Thus, the petition is maintainable.*

ISSUE 2: FUNDAMENTAL RIGHTS OF THE PETITIONER HAVE BEEN VIOLATED

A. Violation of Article 21 – Right to Privacy

1. Mass surveillance through AFRS and PTS violates informational and decisional privacy.
2. Collection and storage of biometric data without necessity and proportionality is unconstitutional.
3. The data breach shows **failure of the State's positive obligation** to protect personal data.

B. Violation of Articles 19(1)(a) & 19(1)(b)

1. Predictive Threat Scores chill free speech and peaceful assembly.
2. Automated warnings deter lawful protests.
3. Restrictions fail the **test of reasonableness under Article 19(2)**.

C. Violation of Articles 21 & 22 – Arbitrary Detention

1. Detention for 72 hours without a warrant violates procedural safeguards.
2. “Preventive digital house arrest” has no constitutional basis.
3. Absence of judicial oversight renders the detention illegal.

D. Violation of Article 14 – Equality Before Law

1. PTS system is opaque and discriminatory, particularly against foreign nationals.
2. Absence of procedural safeguards leads to arbitrary classification.

ISSUE 3: SECTIONS 5, 9, AND 14 OF SSPPA ARE UNCONSTITUTIONAL

A. Section 5 – AFRS in Public Spaces

- Enables mass surveillance without consent or oversight.
- Violates proportionality and necessity principles.

B. Section 9 – Predictive Threat Scores

- Delegates unchecked power to algorithms.
- No transparency, appeal, or accountability mechanism.
- “Preventive digital house arrest” is unconstitutional.

C. Section 14 – Backdoor Encryption Access

- Destroys end-to-end encryption.
- Disproportionately infringes privacy and free speech.
- Enables mass surveillance beyond stated objectives.

◆ Hence, the provisions are liable to be struck down.

ISSUE 4: NATIONAL SECURITY IS SUBJECT TO JUDICIAL REVIEW

1. National security cannot be a **magic phrase** to bypass constitutional scrutiny.
2. Courts are guardians of fundamental rights even during emergencies.
3. Judicial review is essential to prevent executive excess.

V. PRAYER

The Petitioners respectfully pray that this Hon'ble Court may:

1. Declare Sections 5, 9, and 14 of the SSPPA unconstitutional.
2. Hold the detention of Ms. Paula Taylor illegal.
3. Direct the State to compensate the petitioner for data breach and rights violations.
4. Issue appropriate guidelines regulating surveillance and predictive policing.
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